

HOUSE BILL 1426

By Russell

AN ACT to amend Chapter 74 of the Private Acts of 1975; as amended by Chapter 234 of the Private Acts of 1976; Chapter 26 of the Private Acts of 1991; and any other acts amendatory thereto, relative to the City of Loudon.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 74 of the Private Acts of 1975, as amended by Chapter 234 of the Private Acts of 1976, Chapter 26 of the Private Acts of 1991, and any other acts amendatory thereto, is amended by adding the following new subdivisions to Article II, SECTION 1:

(38) To prescribe reasonable regulations regarding the construction, maintenance, equipment, operation, and service of public utilities, compel reasonable extensions of facilities for these services, and assess fees for the use of or impact upon such services. Nothing in this subdivision (38) shall be construed to permit the alteration or impairment of any of the terms or provisions of any exclusive franchise granted or of any exclusive contract entered into under subdivisions (9) and (10);

(39) To establish, open, relocate, vacate, alter, widen, extend, grade, improve, repair, construct, reconstruct, maintain, light, sprinkle, and clean public highways, streets, boulevards, parkways, sidewalks, alleys, parks, public grounds, public facilities, libraries and squares, wharves, bridges, viaducts, subways, tunnels, sewers, and drains within the corporate limits, or outside of the corporate limits as permitted by state law, regulate their use within the corporate limits, assess fees for the use of or impact upon such property and facilities, and take and appropriate property therefore under Tennessee Code Annotated, §§ 7-31-107 - 7-31-111, and Tennessee Code Annotated, Title 29, Chapter 16, or any other manner provided by general law.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Loudon. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.